

AS INTRODUCED IN RAJYA SABHA

Bill No. LIV of 1999

**THE CONSTITUTION (EIGHTY-EIGHTH AMENDMENT)
BILL, 1999**

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BILL

further to amend the Constitution of India.

BE it enacted by Parliament in the Fiftieth Year of the Republic of India as follows:—

1. This Act may be called the Constitution (Eighty-eighth Amendment) Act, 1999. Short title.

2. In article 335 of the Constitution, the following proviso shall be inserted at the
5 end, namely:— Amendment
of article
335.

"Provided that nothing in this article shall prevent in making of any provision in
favour of the members of the Scheduled Castes and the Scheduled Tribes for
relaxation in qualifying marks in any examination or lowering the standards of
evaluation, for reservation in matters of promotion to any class or classes of services
10 or posts in connection with the affairs of the Union or of a State."

STATEMENT OF OBJECTS AND REASONS

The Scheduled Castes and the Scheduled Tribes had been enjoying the facility of relaxation of qualifying marks and standards of evaluation in matters of reservation in promotion. The Supreme Court in its judgment dated 1-10-1996 in the case of *S. Vinod Kumar Vs. Union of India* held that such relaxations in matters of reservation in promotion were not permissible under article 16(4) of the Constitution in view of the command contained in article 335 of the Constitution. The Apex Court also held that the law on the subject of relaxations of qualifying marks and standards of evaluation in matters of reservation in promotion is one laid down by the nine-judge Constitution Bench of the Supreme Court in the case of *Indira Sawhney and others Vs. Union of India and others*. Para 831 of Indira Sawhney judgment also held such relaxations as being not permissible under article 16(4) in view of the command contained in article 335 of the Constitution. In order to implement the judgments of the Supreme Court, such relaxations had to be withdrawn with effect from 22.07.1997.

2. In view of the adverse effect of the order dated 22.07.1997 on the interests of Scheduled Castes and Scheduled Tribes, representations had been received by the Government from several quarters including the Members of Parliament. Considering the various representations, the Government has reviewed the position and decided to move for constitutional amendment with a view to restore the relaxations which were withdrawn vide instructions issued by the Department of Personnel and Training on 22.07.1997.

3. The Bill seeks to achieve the aforesaid object.

NEW DELHI;

The 22nd December, 1999.

VASUNDHARA RAJE.

ANNEXURE

EXTRACT FROM THE CONSTITUTION OF INDIA

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335. The claims of the members of the Scheduled Castes and the Scheduled Tribes shall be taken into consideration, consistently with the maintenance of efficiency of administration, in the making of appointments to services and posts in connection with the affairs of the Union or of a State.

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Claims of
Scheduled
Castes and
Scheduled
Tribes to
services
and posts.

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(Smt. Vasundhara Raje, Minister of State of Department of Personnel and Training and Department of Pension and Pensioners' Welfare)